

26STCV14602 26STCV14602

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Case Number: 26STCV14602 Hearing Date: August 13, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: August 13, 2026

Case Name: Guzman v. General Motors

Company

Case

No.: 26STCV14602

Matter: Demurrer with Motion to Strike

Moving

Party: Defendant General

Motors Company

Responding Party: None

Tentative Ruling: Defendant's

demurrer is sustained.

Defendant's

motion to strike is rendered moot.

Plaintiff Joshua

Guzman ("Plaintiff") filed his action against General Motors, LLC ("Defendant")

and Does 1 through 10. The Complaint alleges eight causes of action against Defendant for: (1) breach of implied warranty; (2) breach of express warranty; (3) violation of the Song-Beverly Consumer Warranty Act; (4) fraud—intentional misrepresentation; (5) negligent misrepresentation; (6) promissory fraud; (7) promissory estoppel; (8) violation of Business and Professions Code section 17200.

Defendant

demurs to Plaintiff's fourth, fifth, sixth, seventh and eighth causes of action, and moves to strike portions of Plaintiff's Complaint for requesting punitive damages. No opposition was filed by Plaintiff.

Legal Standard

A demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); see also *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The purpose of a demurrer is to challenge the sufficiency of a pleading by raising questions of law. (Postley v. Harvey (1984) 153 Cal.App.3d 280, 286.) "In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties." (Code Civ. Proc., § 452.) The court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law" (Berkley v. Dowds (2007) 152 Cal.App.4th 518, 525.) In applying these standards, the court liberally construes the complaint to determine whether a cause of action has been stated. (Picton v. Anderson Union High School Dist. (1996) 50 Cal.App.4th 726, 733.)

"The

court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Code Civ. Proc., § 436.) "Immaterial" or "irrelevant" matters include allegations not essential to the claim, allegations neither pertinent to nor supported by an otherwise sufficient claim or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10,

subds. (b)(1)-(3).)

Analysis

Meet and
Confer

Pursuant to Code of Civil Procedure

section 430.41, “a demurring party is required to meet and confer in person, by telephone, or video conference with the party that filed the pleading. . . .”

(Code Civ. Proc. § 430.41, subd. (a).) A moving party in a motion to strike must meet and confer before filing the motion. (Code Civ. Proc. §435.5, subd. (a).)

Defendant contends that on June 4, 2026, the parties met and conferred telephonically. (Kay Decl., ¶ 2.) Thus, the parties fulfilled their meet-and-confer obligations.

Demurrer

Defendant

demurs to Plaintiff’s fourth, fifth, sixth, seventh, and eighth causes of action on the grounds that Plaintiff fails to allege sufficient facts to state a viable cause of action.

Fourth

and Fifth Causes of Action—Intentional Misrepresentation and Negligent Misrepresentation

The

facts constituting the alleged fraud must be alleged factually and specifically as to every element of fraud, as the policy of “liberal construction” of the pleadings will not ordinarily be invoked. (Lazar v. Superior Court (1996) 12 Cal.4th 631, 645 (Lazar).) To properly allege fraud against a corporation, the plaintiffs must plead the names of the persons allegedly making the false representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written. (Tarmann v. State Farm Mut. Auto. Ins. Co. (1991) 2 Cal.App.4th 153, 157 (Tarmann).) “Fraud is never presumed. So in the instant case, if the plaintiff would charge the defendant corporation with making fraudulent misrepresentations, it was necessary for him to allege the name of the person who spoke, his authority to

speak, to whom he spoke, what he said or wrote, and when it was said or written.” (Mason v. Drug, Inc. (1939) 31 Cal.App.2d 697, 703.)

Defendant

argues that Plaintiff has not alleged sufficient facts to conform with the specificity requirement as required for fraud-based claims. The Court is persuaded by Defendant's argument that Plaintiff does not meet the required pleading standard. There are no allegations in the Complaint that the representative they spoke with had the authority to speak on behalf of Defendant. (Compl., ¶ 12, 48, 57.) The Complaint alleges that a misrepresentation was made by, or that the alleged misrepresentation was about, the source, sponsorship, approval, or certification of his vehicle. But, the allegations are conclusory and do not meet the particularity requirement. In the absence of a timely opposition to dispute the arguments made by Defendant, the Court finds that the Complaint is deficient.

Thus, the

Court sustains Defendant's demurrer to Plaintiff's fourth and fifth causes of action.

Sixth

Cause of Action – Promissory Fraud/Fraudulent Inducement

““Promissory

fraud” is a subspecies of the action for fraud and deceit. A promise to do something necessarily implies the intention to perform; hence, where a promise is made without such intention, there is an implied misrepresentation of fact that may be actionable fraud.” (Lazar, supra, 12 Cal.4th at p. 638.) “An action for promissory fraud may lie where a defendant fraudulently induces the plaintiff to enter into a contract.” (Ibid.)

Defendant

argues that Plaintiff did not plead fraud with the requisite specificity to allege that Defendant knew of the facts and allegations that were made with the intent to deceive Plaintiff. The Court is persuaded by Defendant's argument. Moreover, the sixth cause of action is related to the fourth and fifth causes of action and also fails for failure to allege with specificity. In the absence of a timely opposition to dispute the arguments made by Defendant, the Court finds that the Complaint is deficient.

Thus, the
Court sustains Defendant's demurrer to Plaintiff's sixth cause of action.

Seventh
Cause of Action—Promissory Estoppel

"The
elements of a promissory estoppel claim are "(1) a promise clear and
unambiguous in its terms; (2) reliance by the party to whom the promise is
made; (3)[the] reliance must be both reasonable and foreseeable; and (4) the
party asserting the estoppel must be injured by his reliance."" (Aceves v.
U.S. Bank, N.A. (2011) 192 Cal.App.4th 218, 225.)

Defendant
contends that Plaintiff fails to allege a clear and unambiguous promise. The
Court agrees. As addressed throughout this ruling, it is unclear whether the
people Plaintiff spoke with had the authority to speak on behalf of Defendant.
In the absence of a timely opposition to dispute the arguments made by
Defendant, the Court finds that the Complaint fails to allege sufficient facts.

Thus, the
Court sustains Defendant's demurrer to Plaintiff's seventh cause of action.

Eight
Cause of Action—Violation of California's Unfair Competition Laws ("UCL")

"A
plaintiff alleging unfair business practices under these statutes must state
with reasonable particularity the facts supporting the statutory
elements of the violation." (Khoury v. Maly's of California, Inc. (1993)
14 Cal.App.4th 612, 618 (italics added).) Business and Professions Code section
17200 prohibits unlawful, unfair, or fraudulent business acts or practices. (See
Bus. & Prof. Code, § 17200.)

Here, the
Complaint alleges all three prongs under the UCL, but neither is sufficiently
alleged to survive demurrer. Also, the allegations of fraudulent conduct
throughout the demurrer have been determined not to meet the pleading standard,
and the eighth cause of action is derivative of the fourth, fifth, and sixth
causes of action. As to the unfair and unlawful prong, the allegations are also

deficient. In the absence of a timely opposition to dispute the arguments made by Defendant, the Court finds that the Complaint does not allege sufficient facts for a viable cause of action.

The Court

notes that Defendant raises the argument that Plaintiff has not alleged sufficient facts for a claim for injunctive relief. The Court finds that this argument is procedurally improper for purposes of demurrer.

Thus, the

Court sustains Defendant's demurrer to Plaintiff's eighth cause of action.

Motion to Strike

Defendant

moves to strike portions of Plaintiff's Complaint relating to the allegations and prayer for punitive damages under the fourth, fifth, and sixth causes of action.

The motion

to strike is rendered moot because the Court sustained the demurrer on the three causes of action.

Leave to Amend

Leave to amend must be allowed

where there is a reasonable possibility of successful amendment. (See *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349 [court shall not "sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment"]; *Kong v. City of Hawaiian Gardens Redevelopment Agency* (2002) 108 Cal.App.4th 1028, 1037 ["A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment."]; *Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768 ["When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend."].) The burden is on the complainant to show the Court that the pleading can be successfully amended. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

Plaintiff failed to oppose the demurrer.

Plaintiff has made no showing to meet his burden to demonstrate the pleading can be successfully amended. Thus, leave to amend will not be granted.

Conclusion

Defendant's

demurrer is sustained as to the fourth, fifth, sixth, seventh, and eight causes of action without leave to amend.

Defendant's

motion to strike is rendered moot.